

Executive Summary

Cameroon is a republic dominated by a strong presidency. The country has a multiparty system of government, but the Cameroon People's Democratic Movement (CPDM) has remained in power since its creation in 1985. In practice, the president retains the power to control legislation. In 2011 citizens re-elected CPDM leader Paul Biya president, a position he has held since 1982, in a flawed election marked by irregularities, but observers did not believe these had a significant impact on the outcome. In April 2013 the country conducted the first Senate elections in its history that were peaceful and considered generally free and fair. In September 2013 simultaneous legislative and municipal elections were held, and most observers considered them free and fair.

Civilian authorities maintained a degree of control over security forces, including police and gendarmerie.

The most significant human rights issues included: arbitrary and unlawful killings through excessive use of force by security forces; disappearances by security forces and Boko Haram; torture and abuse by security forces including in military and unofficial detention facilities; prolonged arbitrary detentions including of suspected Boko Haram supporters and individuals in the Anglophone regions; harsh and life threatening prison conditions; violations of freedoms of expression and assembly; periodic government restrictions on access to the internet; trafficking in persons; criminalization and arrest of individuals engaged in consensual same-sex sexual conduct; and violations of workers' rights.

Although the government took some steps to punish and prosecute officials who committed abuses in the security forces and in the public service, it did not often make public actual sanctions, and offenders often continued acting with impunity.

Section 1.

Respect for the Integrity of the Person, Including Freedom from:

A. ARBITRARY DEPRIVATION OF LIFE AND OTHER UNLAWFUL OR POLITICALLY MOTIVATED KILLINGS

There were several reports security force officials committed arbitrary and unlawful killings through excessive use of force in the execution of official duties. Amnesty International and the International Crisis Group reported that defense and security forces used excessive and disproportionate force to disperse demonstrations in the country's Anglophone regions, killing at least 40 individuals between September 28 and October 2 alone. On November 17, the UN High Commissioner for Human Rights called on the government to conduct an impartial and independent investigation into the allegations of human rights violations committed during and after the October incidents but as of December no investigations into these allegations were underway.

In the Far North region, security forces also were reported responsible for holding incommunicado, torturing, and in at least 10 cases killing suspected Boko Haram and Islamic State (ISIS)-West Africa supporters in detention facilities run by the military and intelligence services, including the Rapid Intervention Battalion (BIR) and the General Directorate of External Research (DGRE). Civil society organizations and media sources generally blamed members of the three primary security forces—the BIR, the Motorized Infantry Battalion, and the gendarmerie—for

the deaths. Per Amnesty International, no security force officials responsible for human rights violations documented in their reporting on the Far North region had been held to account as of November.

The terrorist organization Boko Haram as well as ISIS-West Africa continued killing civilians, including members of vigilance committees, and members of defense and security forces in the Far North region. According to Amnesty International, Boko Haram conducted at least 120 attacks between July 2016 and June 2017, including 23 suicide bombings, resulting in the deaths of more than 150 civilians.

B. DISAPPEARANCE

There continued to be reports of arrests and disappearances of individuals by security forces, particularly in the northern and Anglophone regions. According to nongovernmental organizations (NGOs), some activists arrested in the context of the crisis fueled by perceptions of marginalization in the northwest and southwest Anglophone regions could not be accounted for as of November. Family members and friends of detained persons were frequently unaware of the missing individual's location in detention until after a month or more of attempting to locate the missing individual.

Boko Haram insurgents kidnapped civilians, including women and children, during numerous attacks in the Far North region. Some of their victims remained unaccounted for as of November.

C. TORTURE AND OTHER CRUEL, INHUMAN, OR DEGRADING TREATMENT OR PUNISHMENT

Although the constitution and law prohibit such practices, there were reports that security force members tortured, beat, harassed, or otherwise abused citizens. According to credible NGOs, members of the BIR, DGRE, and other security officials, including police and gendarmes, tortured persons inside and outside detention facilities.

Amnesty International reported in July on the cases of 101 individuals whom security forces allegedly tortured between March 2013 and March 2017 in detention facilities run by the BIR and the DGRE. While most of the cases documented involved persons arrested in 2014 and 2015 and tortured between 2014 and 2016, Amnesty International asserted that the practice continued into 2017. It stated that torture took place at 20 sites, including four military bases, two intelligence centers, a private residence, and a school. Specific sites named in the report included the BIR bases in Salak, Kousseri, and Kolofata, in the Far North region, and the DGRE facilities in Yaounde. Amnesty International said victims of torture described at least 24 different methods used to beat, break, and humiliate them, usually with the aim of forcing confessions or gaining information but also to punish, terrify, and intimidate. Most commonly, detainees were beaten with various objects, including electric cables, machetes, and wooden sticks; forced into stress positions and suspended from poles in ways that caused extreme pain to joints and muscles; and subjected to simulated drowning. A significant number of those arrested, according to the report, believed they had been targeted in part due to their Kanuri ethnicity. As of November no known investigations into these allegations had begun.

Press reporting from November 2016 indicated police and gendarmes in Buea, Southwest region, removed students, some of whom had recently been involved in

protests at the local university, from their hostels, forced them to roll over in mud, and beat them with batons. According to reports, students were crammed onto military trucks and taken to undisclosed locations, where some were held for months. Some female students were allegedly raped.

Rape and sexual abuse were reported in several instances. The International Crisis Group reported that security forces were responsible for sexual abuse during their response to unrest in the Anglophone regions in September and October. International humanitarian organizations reported that members of the security forces stopped female refugees who travelled without national identity cards and sexually exploited them in exchange for letting the women pass through security checkpoints.

The United Nations reported that as of October it had received four allegations of sexual exploitation and abuse against Cameroonian peacekeepers. One allegation of an exploitative relationship, one allegation of transactional sex, and two allegations of the rape of a child were made against military personnel serving with the UN Multidimensional Integrated Stabilization Mission in the Central African Republic. As of October 26, all investigations were pending. In two cases the United Nations suspended payments to the accused personnel; in the other two, interim actions were pending the identification of the personnel involved.

Prison and Detention Center Conditions

Prison conditions remained harsh and potentially life threatening due to gross overcrowding, inadequate food and medical care, physical abuse, and poor sanitary conditions.

Physical Conditions: Overcrowding remained pervasive in most prisons, especially in major urban centers. Officials held prisoners in dilapidated, colonial-era prisons, where the number of inmates was as much as four to five times the intended capacity. Prisons generally had separate wards for men, women, and children, but authorities often held detainees in pretrial detention and convicted prisoners together. In many prisons, toilet areas were common pits with multiple holes. In some cases, women benefitted from better living conditions, including improved toilet facilities and less crowded living quarters. Authorities claimed to hold sick persons separately from the general prison population, but this was often not the case.

The central prison in Maroua, Far North region, built in the 1930s and with an intended capacity of 350, held an estimated 1,600 inmates as of June. The central prison in Garoua, North region, with an intended capacity of 500, held nearly 2,000 inmates as of June 30. The central prison in Ngaoundere, Adamawa region, was designed for 500 inmates yet hosted 1,286 detainees as of July, over half of whom had not been convicted of any crime. As of July the principal prison in Edea, Littoral region, which had an intended capacity of 100, held 402 inmates, most of whom slept on the floor. The Kondengui central prison in Yaounde held approximately 4,000 inmates as of June, but its intended capacity was 1,500. The central prison in Buea, Southwest region, built to host 300 inmates, held 1,175 inmates as of July.

Amnesty International recorded testimonies by suspected Boko Haram affiliates who were held at different times and in various detention facilities from 2014 to March 2017. Poor detention conditions included extreme overcrowding, inadequate and insufficient food and water, little or no access to sanitation, denial of medical assistance, and lack of access to fresh air or sunlight.

As in 2016, physical abuse by prison guards and prisoner-on-prisoner violence were also problems. According to media outlets and NGOs, on March 12-13, inmates of Garoua Central Prison launched a protest that developed into a mutiny. The prisoners were reportedly protesting life-threatening overcrowding. Prisoners denounced lack of potable water and other inhuman conditions. Some detainees besieged the main prison courtyard and refused to return to their cells because of excessive heat and poor ventilation. The protest allegedly became violent when security force members attempted to return the prisoners to their cells forcibly. Three inmates died, according to official sources, and more than 40 were injured.

Disease and illness were widespread. Malnutrition, tuberculosis, bronchitis, malaria, hepatitis, scabies, and numerous other untreated conditions, including infections, parasites, dehydration, and diarrhea, were rampant. The number of deaths associated with detention conditions or actions of staff members or other authorities was unknown. Observers indicated there had been 26 cases of tuberculosis in the central prison in Garoua, North region, since January. Amnesty International estimated that dozens of detainees died in both BIR and DGRE-run detention facilities between late 2013 and May 2017 because of torture and other mistreatment.

Corruption among prison personnel was reportedly widespread. Visitors were forced to bribe wardens to access inmates. Some visitors reported paying 2,000 CFA francs (\$3.73)—the minimum daily wage is roughly CFA francs 570 (\$1.06). Prisoners bribed wardens for special favors or treatment, including temporary freedom, cell phones, beds, and transfers to less crowded areas of the prisons. Due to inability to pay fines, some prisoners remained imprisoned after completing their sentences or receiving court orders of release.

As in the previous year, Amnesty International reported cases of persons held in unofficial detention sites, including BIR and/or DGRE-run facilities and other detention centers run by the security forces. As of mid-March the number of persons held in Salak (Maroua, Far North region) and DGRE Lac (Yaounde, Center region) was at least 20 in each facility, based on estimates by Amnesty International. Local news sources reported that authorities had released 18 presumed Boko Haram members on August 10 after holding them for more than 10 months in Salak. Some sources stated that a number of Salak prisoners had been transferred to the central prison in Maroua.

Administration: Independent authorities often investigated credible allegations of life-threatening conditions. Visitors needed formal authorization from the state counsel; without authorization, they had to bribe prison staff to communicate with inmates. In addition, visits to Boko Haram suspects were highly restricted. Some detainees were held far from their families, reducing the possibility of visits.

Independent Monitoring: The government permitted international humanitarian organizations access to prisoners in official prisons. For example, the International Committee of the Red Cross had access to five prisons, including Maroua and Kousseri in the Far North region, Garoua in the North, Bertoua in the East, and Kondengui principal prison in Yaounde, Center region. Observers did not have access to prisoners held in unofficial military detention facilities. The National Commission on Human Rights and Freedoms (NCHRF) and NGOs, including the Commission for Justice and Peace of the Catholic Archdiocese, made infrequent unannounced prison visits. In July authorities denied a request by a joint delegation of foreign experts to visit the Yaounde Kondengui principal and central prisons. As of September, authorities had not approved an August 11 request by the NCHRF to visit detention facilities at the Secretariat of State for Defense (SED), DGRE, and National Surveillance Directorate.

Authorities allowed NGOs to conduct formal education and other literacy programs in prisons. At the principal prison in Edea, Littoral region, NGO Christian Action for the Abolition of Torture sponsored a Literacy and Social Reintegration Center that provided primary and lower secondary education to inmates. Human IS Right, a Buea-based civil society organization, in partnership with Operation Total Impact, continued their formal education and reformation education program in principal prisons of Buea and Kumba, Southwest region.

Improvements: An international humanitarian organization reported that health conditions, especially malnutrition, had improved in the prisons it worked in since it started collaborating more closely with government. It also stated it had agreements with some hospitals and took care of some medical bills of prisoners who required outside medical attention.

D. ARBITRARY ARREST OR DETENTION

The constitution and law prohibit arbitrary arrest and detention and provide for the right of any person to challenge the lawfulness of their arrest or detention in court. The law states that, except in the case of an individual discovered in the act of committing a felony or misdemeanor, the officials making the arrest shall disclose their identity and inform the person arrested of the reason. The law also provides that persons arrested on a warrant shall be brought immediately before the examining magistrate or the president of the trial court who issued the warrant, and that the accused persons shall be given reasonable access to contact their family, obtain legal advice, and arrange for their defense. On several occasions the government did not respect these provisions.

ROLE OF THE POLICE AND SECURITY APPARATUS

The national police, DGRE, Ministry of Defense, Ministry of Territorial Administration and Decentralization, and, to a lesser extent, Presidential Guard, are responsible for internal security. The Ministry of Defense—which includes the gendarmerie, army, and the army’s military security unit—reports to an office of the Presidency, resulting in strong presidential control of security forces. The army is responsible for external security; the national police and gendarmerie have primary responsibility for law enforcement. The gendarmerie alone has responsibility in rural areas. The national police—which includes the public security force, judicial police, territorial security forces, and frontier police—report to the General Delegation of National Security (DGSN), which is under the direct authority of the Presidency.

The government took some steps to hold police accountable for abuses of power. Police remained ineffective, poorly trained, and corrupt. Impunity continued to be a problem.

Civilian authorities maintained some control over the police and gendarmerie, and the government had some mechanisms in place to investigate and punish abuse and corruption. The DGSN and gendarmerie investigated reports of abuse and forwarded cases to the courts. Lesser sanctions were handled internally. The DGSN, Ministry of Defense, and Ministry of Justice claimed members of security forces were sanctioned during the year for committing abuses, but few details were known about investigations or any subsequent accountability.

The National Gendarmerie and the army have special offices to investigate abuse. The secretary of state for defense and the minister-delegate at the Presidency are in charge of prosecuting abusers. The minister-delegate of defense refers cases

involving aggravated theft, criminal complicity, murder, and other major offenses to the military courts for trial.

As of November, the Military Court had not issued a decision in the prosecution of gendarme officer Lazare Leroy Dang Mbah, who was placed on pretrial detention following his involvement in the death of Moupen Moussa in March 2016 at an SED detention facility. Mbah detained and beat Moussa for failing to produce his national identity card. In the criminal procedure, the accused pleaded guilty of the charges listed against him. In addition the trial for Colonel Charles Ze Onguene, former commander of the Far North Gendarmerie Legion, continued before the Military Court in Yaounde. Colonel Ze was charged in connection with a cordon-and-search operation carried out in the villages of Magdeme and Double, Far North region, in 2014, during which more than 200 men and boys were arbitrarily arrested and taken to the gendarmerie in Maroua. At least 25 of them died in custody the same night, according to official sources.

ARREST PROCEDURES AND TREATMENT OF DETAINEES

The law requires police to obtain a warrant before making an arrest, except when a person is caught in the act of committing a crime, but police often did not respect this requirement. The law provides that detainees be brought promptly before a magistrate, although this often did not occur. Police may legally detain a person in connection with a common crime for up to 48 hours, renewable once. This period may, with the written approval of the state counsel, be exceptionally extended twice before charges are brought. Nevertheless, police and gendarmes reportedly often exceeded these detention periods. The law also permits detention without charge for renewable periods of 15 days by administrative authorities such as governors and civilian government officials serving in territorial command. The law provides for access to legal counsel and family members, although police

frequently denied detainees access to both. The law prohibits incommunicado detention, but it occurred, especially in connection with the fight against Boko Haram. The law permits bail, allows citizens the right to appeal, and provides the right to sue for unlawful arrest, but these rights were seldom respected.

Arbitrary Arrest: Police, gendarmes, BIR officials, and government authorities reportedly continued to arrest and detain persons arbitrarily, often holding them for prolonged periods without charge or trial and at times incommunicado. “Friday arrests,” a practice whereby individuals arrested on a Friday typically remained in detention until at least Monday unless they paid a bribe, continued albeit to a limited extent. There were several reports police or gendarmes arrested persons without warrants on circumstantial evidence alone, often following instructions from influential persons to settle personal scores. There were also reports police or gendarmes arbitrarily arrested persons during neighborhood sweeps for criminals and stolen goods or arrested persons lacking national identification cards, especially in connection with the Anglophone crisis and the fight against Boko Haram.

There were several reports the government arbitrarily arrested and detained innocent citizens. Between November 2016 and July 2017, authorities arrested dozens of Anglophone activists and bystanders for no apparent reason. Police arrested some persons without informing them of the charges. In some instances the government did not inform family members where relatives were taken. On August 31 and September 1, the government released 55 Anglophone detainees. Others, up to 69 by some estimates, remained in detention as of September 30. In some cases, journalists covering events in the Anglophone regions were arrested and held for long periods of time without being notified of the charges against them.

On January 21, unidentified individuals in civilian clothing arrested Ayah Paul Abine, advocate general at the Supreme Court. The men took Ayah from his private home to the SED, where they held him without charge. In March, Ayah's lawyers filed an application for immediate release with the Mfoundi High Court in Yaounde. On March 16, Ayah learned the charges against him. Lawyers believed Ayah's detention was arbitrary because it happened over a weekend, he did not learn about the charges until several weeks later, and the arrest was in violation of the provisions of the criminal procedure code applicable to magistrates. On August 30, President Biya ordered the discontinuance of proceedings pending before the Military Court against Ayah, Nkongho Felix Agbor Balla, Fontem Aforteka'a Neba, and 52 others arrested in relation to the Anglophone crisis.

Amnesty International's July report indicated that arbitrary arrests and detentions continued on a large scale in the Far North region, and even the basic legal safeguards concerning arrest and detention were rarely respected. According to the report, individuals were arrested arbitrarily and held in secret detention for several weeks or even months.

Pretrial Detention: The law provides for a maximum of 18 months' detention before trial, but many detainees waited for years to appear in court. No comprehensive statistics were available on pretrial detainees. As of July, the central prison in Ngaoundere, Adamawa region, hosted 1,286 inmates, 735 of whom were pretrial detainees and appellants. Some pretrial detainees had been awaiting trial for more than two years. An international humanitarian organization claimed some alleged terrorists in detention had been in prison for so long that they no longer knew the addresses of their relatives. The increase in pretrial prison populations was due in large part to mass arrests of Anglophone activists and persons accused of supporting Boko Haram; staff shortages; lengthy legal

procedures; lost files; administrative and judicial bottlenecks, including procedural trial delays; and corruption.

As of November, Oben Maxwell, an activist, remained in pretrial detention in the central prison in Buea, Southwest region. He was arrested in 2014 for holding an illegal meeting. The Military Court initially handled the case, but it was then assigned to the Court of First Instance in Buea with no progress. On October 30, the Military Court in Yaounde sentenced Abdoulaye Harissou, a public notary, to three years' imprisonment for nondenunciation. Having already served his sentence, he was released on November 12. The court sentenced another defendant in the case, Aboubakar Sidiki, president of opposition party Patriotic Movement of the Cameroonian Salvation, to 25 years. He appealed the court decision. Harissou and Sidiki were accused of hostility against the homeland and illegal possession of weapons of war and had been in pretrial detention since their arrests in August 2014.

E. DENIAL OF FAIR PUBLIC TRIAL

The constitution and law provide for an independent judiciary, but the judiciary was frequently controlled by the president and majority party. Individuals reportedly accused innocent persons of crimes, often due to political motivations, or caused trial delays to solve personal disputes. Although authorities generally enforced court orders, there was at least one instance where a public entity was reluctant to respect a court decision.

The court system is subordinate to the Ministry of Justice. The constitution designates the president as "first magistrate," thus "chief" of the judiciary, making him the legal arbiter of any sanctions against the judiciary. The constitution specifies the president is the guarantor of the legal system's independence. He appoints all judges, with the advice of the Higher Judicial Council. During the year

the president invoked the military code of justice and ordered the discontinuance of proceedings pending before military courts against Anglophone activists, including those for whom the court had previously denied bail. While judges hearing a case should be governed only by the law and their conscience as provided for by the constitution, in some matters they are subordinate to the minister of justice, or to the minister in charge of military justice. The Special Criminal Court must have approval from the minister of justice before it may drop charges against a defendant who offers to pay back the money he/she was accused of having embezzled. Despite the judiciary's partial independence from the executive and legislative branches, the president appoints all members of the bench and legal department of the judicial branch, including the president of the Supreme Court, and may dismiss them at will.

The legal system includes statutory and customary law, and many criminal and civil cases may be tried using either. Criminal cases generally were tried in statutory courts.

Customary courts served as a primary means for settling domestic cases, including succession, inheritance, and child custody cases. Customary courts may exercise jurisdiction in a civil case only with the consent of both parties. Either party has the right to appeal an adverse decision by a customary court to the statutory courts.

Customary court convictions involving alleged witchcraft are automatically transferred to the statutory courts, which act as the courts of first instance.

Customary law is deemed valid only when it is not "repugnant to natural justice, equity, and good conscience," but many citizens in rural areas remained unaware of their rights under civil law and were taught they must abide by customary law. Customary law partially provides for equal rights and status; men may limit

women's rights regarding inheritance and employment. Customary law as practiced in rural areas is based on the traditions of the predominant ethnic group and is adjudicated by traditional authorities of that group. Some traditional legal systems regard wives as the legal property of their husbands.

Military courts may exercise jurisdiction over civilians for offenses including: offenses committed by civilians in military establishments; offenses relating to acts of terrorism and other threats to the security of the state including piracy; unlawful acts against the safety of maritime navigation and oil platforms; offenses relating to the purchase, importation, sale, production, distribution, or possession of military effects or insignia as defined by regulations in force; cases involving civil unrest or organized armed violence; and crimes committed with firearms, including gang crimes, banditry, and highway robbery.

TRIAL PROCEDURES

The constitution and law provide for the right to a fair and public hearing, without undue delay, in which the defendant is presumed innocent, but authorities did not always respect the law. Defendants have the right to be informed promptly and in detail of the charges, with free assistance of an interpreter. Many pretrial suspects were treated as if they were convicted. Defendants have the right to be present and to consult with an attorney of their choice, but in many cases the government did not respect this right, particularly in cases of alleged support for Boko Haram. When defendants cannot pay for their own legal defense, the court may appoint counsel at the public's expense; however, the process was often burdensome and lengthy. Authorities generally allowed defendants to question witnesses and to present witnesses and evidence on their own behalf. Defendants have the right to adequate time and facilities to prepare a defense and not to be compelled to testify or confess guilt. Defendants may appeal convictions. The law extends these

rights to all citizens, although they were not always extended in the cases of suspected Boko Haram affiliates.

Persons suspected of complicity with Boko Haram or considered likely to compromise the security of the state were consistently tried by military courts, and typically the quality of legal assistance was poor. The government assigned cases to trainee lawyers, who received 5,000 CFA francs (\$9.32) per hearing for legal fees, and the payment procedure was cumbersome. Consequently, attorneys lacked motivation to handle such cases. In an interview published in *L'Oeil du Sahel* on March 1, barrister Richard Dzavigandi noted that for some lawyers, defending a terrorist suspect was an immoral cause. In addition, designated lawyers were often not allowed to access case files or visit their clients, which contributed to the poor quality of legal assistance. According to estimates by the Cameroon Bar Association, the military court in Maroua, Far North region, announced approximately 200 capital punishment sentences in 2016, 114 of which were between August and December. Sentences by military courts could be and were appealed to civilian courts. For example, on January 12, the Court of Appeals acquitted Abamat Madam Alifa and Gueme Ali, whom a military tribunal initially sentenced to death on terrorism-related charges. The same day the Court of Appeals also cancelled a military court decision and requalified the offenses concerning Damsa Dapsia Nadege Nadia, whom the military court initially had sentenced to death. The state has not executed anyone sentenced since 1997.

POLITICAL PRISONERS AND DETAINEES

No statistics were available on the precise number of political prisoners. Political prisoners were detained under heightened security, often in SED facilities. Some were allegedly held in DGRE facilities and at the central and principal prisons in

Yaounde. The government did not permit access to such persons on a regular basis, or at all, depending on the case.

CIVIL JUDICIAL PROCEDURES AND REMEDIES

Citizens and organizations have the right to seek civil remedies for human rights violations through administrative procedures or the legal system; both options involved lengthy delays. Unlike in the previous year, there were no reports the government failed to comply with court decisions on labor issues.

Individuals and organizations may appeal adverse domestic decisions to regional human rights bodies. Marafa Hamidou Yaya and Yves Michel Fotso, both accused of corruption, filed a complaint against the government with the United Nations' working group on arbitrary detention.

PROPERTY RESTITUTION

Over the past few years, to implement infrastructure projects, the government seized land occupied or used by civilians. The government failed to resettle or compensate those displaced in a prompt manner, leading them to protest in the streets on several occasions. In a few cases, corrupt officials misappropriated the money the government had earmarked for compensation. In 2016 the government identified some offenders and opened cases against them. The cases were pending as of November. There was no reporting of intentional targeting of particular groups for discriminatory treatment.

F. ARBITRARY OR UNLAWFUL INTERFERENCE WITH PRIVACY, FAMILY, HOME, OR CORRESPONDENCE

Although the constitution and law prohibit arbitrary interference with privacy, family, home, or correspondence, these rights were subject to restriction for the “higher interests of the state,” and there were credible reports police and gendarmes harassed citizens and conducted searches without warrants.

The law permits a police officer to enter a private home during daylight hours without a warrant if he is pursuing a criminal suspect. Police and gendarmes often did not comply with this provision. A police officer may enter a private home at any time in pursuit of a person observed committing a crime.

An administrative authority, including a governor or senior divisional officer, may authorize police to conduct neighborhood sweeps without warrants, and this occurred.

Police and gendarmes sometimes sealed off a neighborhood, systematically searched homes, arrested persons, sometimes arbitrarily, and seized suspicious or illegal articles. In the early morning of March 18, security forces allegedly conducted a cordon-and-search operation in the neighborhoods of Metta Quarter, Azire, and T-Junction in Bamenda, Northwest region. They arrested and detained citizens without national identity cards until their identities could be established. They allegedly transported some of the persons arrested to unknown destinations in military trucks.

There were several reports police arbitrarily confiscated electronic devices and did not return them, especially in Anglophone regions.

Section 2.

Respect for Civil Liberties, Including:

A. FREEDOM OF EXPRESSION, INCLUDING FOR THE PRESS

The law provides for freedom of expression, including for the press, but the government often restricted this right.

Freedom of Expression: Government officials penalized individuals or organizations that criticized or expressed views at odds with government policy. Individuals who criticized the government publicly or privately frequently faced reprisals. On several occasions, the government used the law requiring permits or government notification of public protests to stifle discourse, and many civil society and political organizations reported increased difficulty in obtaining approval to organize public gatherings. The government attempted to impede criticism by monitoring political meetings. In May government authorities reportedly shut down an Amnesty International news conference at which the rights group planned to discuss the plight of three students sentenced to a decade in prison for a Boko Haram joke.

The government also used antiterrorism legislation to exercise control over public and private expression. On April 24, the military court in Yaounde sentenced Radio France International (RFI)'s Hausa service journalist Ahmed Abba to 10 years in prison for “nondenunciation of acts of terrorism” and “laundering the proceeds of terrorist acts.” Authorities arrested Abba in 2015 in Maroua, Far North region, on suspicion of collaborating with Boko Haram and withholding information. After a 29-month imprisonment, Abba was released on December 22 when an Appeals Court judge acquitted him of “laundering of the proceeds of terrorism.” The judge, however, upheld the “nondenunciation of acts of terrorism” charge and

sentenced Abba to 24 months in prison (time served) and a fine of CFA 55 million francs (\$102,611).

Press and Media Freedom: Independent media were active and expressed a wide variety of views, although there were restrictions, especially on editorial independence, in part due to stated terrorism concerns, the fight against Boko Haram, and the crisis in the two Anglophone regions. Journalists reported practicing self-censorship to avoid repercussions for criticizing the government, especially on security matters.

Violence and Harassment: Police, gendarmes, and other government agents arrested, detained, physically attacked, and intimidated journalists for their reporting.

Based on estimates by the National Commission on Human Rights and Freedoms, and the Committee to Protect Journalists (CPJ), authorities arrested at least eight journalists in connection with their reporting of the Anglophone crisis. On February 9, security forces arrested Atia Tilarious Azohnwi, a political journalist with *The Sun* and Amos Fofung, bureau chief at *The Guardian Post*. Both were released in August without charges. Tim Finnian and Hans Achomba were arrested in January for reporting critical of the government; they were released after the president's August 30 decree, which freed 55 detainees.

Censorship or Content Restrictions: The National Communication Council (NCC) is empowered to ensure all printed media comply with the legal requirement that editors in chief deposit two signed copies of each newspaper edition with the Prosecutor's Office for scrutiny within two hours of publication. Journalists and media outlets practiced self-censorship, especially if the NCC had suspended them previously. The NCC issued several warnings and suspensions during the year.

NCC president Peter Esoka publicly warned journalists several times in the year to refrain from publishing stories on secession and federalism activities in the two Anglophone regions. On January 10, Northwest regional authorities sealed the premises of Bamenda-based Hot Cocoa 94 FM Radio. The authorities allegedly accused the station of inciting the population to civil disobedience. According to a CPJ report, the station was allowed to resume broadcasting within 48 hours with the condition that it handle sensitive issues objectively, especially during crisis situations. *Epervier Plus* and its editor received a six-month suspension for publishing allegations of embezzlement involving a senior divisional officer.

Libel/Slander Laws: Press freedom is further constrained by strict libel laws. These laws authorize the government, at its discretion and the request of the plaintiff, to criminalize a civil libel suit or to initiate a criminal libel suit in cases of alleged libel against the president or other high government officials. Such crimes are punishable by prison terms and heavy fines. The libel law places the burden of proof on the defendant. The government contended libel laws were aimed at safeguarding citizens whose reputations could be permanently damaged by defamation. The government and public figures reportedly used laws against libel or slander to restrict public discussion. On February 22, police arrested Medjo Lewis, editor of *La Detente Libre*. The High Court of Bafoussam, West region, subsequently sentenced him to two years in prison plus a fine of 10 million CFA francs (\$18,656) for defamation. Lewis was granted an early release in September.

INTERNET FREEDOM

From January 17 to April 20, the government blocked access to the internet in the Southwest and Northwest regions. On January 17, the country's four telephone operators, including South Africa's MTN and France's Orange, informed their subscribers in both regions that internet services were no longer available for

reasons “beyond their control.” In late March the minister of telecommunications acknowledged authorities were behind the internet shutdown. Government authorities claimed the shutdown was an attempt to limit the propagation of images and misinformation about the crisis in the Anglophone regions, which the government perceived as a threat to peace and national unity. The Global Network Initiative released a statement in January expressing deep concerns about the restrictions on the internet and urging the government to lift the restrictions immediately.

Civil society organizations reported renewed, targeted Internet disruptions in select locations in the Southwest and Northwest regions after September 22 and following major protests in the Anglophone regions on October 1. Public announcements from the government indicated a willingness to block internet access again should the government deem it necessary. In October the Office of the UN High Commissioner for Human Rights voiced concern over tensions in the country’s Anglophone regions, noting that people should be allowed to exercise their rights to freedom of expression, including through uninterrupted access to the internet.

The International Telecommunication Union estimated that 25 percent of the population used the internet in 2016.

ACADEMIC FREEDOM AND CULTURAL EVENTS

Although there were no legal restrictions on academic freedom or cultural events, state security informants reportedly continued to operate on university campuses. There were no reports the government censored curricula; sanctioned academic personnel for their teachings, writing, or research; restricted academic travel or contacts; intimidated academics into self-censorship; or attempted to influence

academic appointments based on political affiliation. There were a few reports, however, of security personnel disrupting student extracurricular activities.

B. FREEDOMS OF PEACEFUL ASSEMBLY AND ASSOCIATION

The government restricted freedoms of peaceful assembly and association.

FREEDOM OF PEACEFUL ASSEMBLY

Although the law provides for freedom of peaceful assembly, the government often restricted this right. The law requires organizers of public meetings, demonstrations, and processions to notify officials in advance but does not require prior government approval of public assemblies and does not authorize the government to suppress public assemblies that it has not approved in advance. Nevertheless, officials routinely asserted the law implicitly authorizes the government to grant or deny permission for public assemblies. The government often refused to grant permits for assemblies and used force to suppress assemblies for which it had not issued permits. Authorities typically cited “security concerns” as the basis for deciding to block assembly. The government also prevented civil society organizations and political parties from holding press conferences. Police and gendarmes forcibly disrupted meetings and demonstrations of citizens, trade unions, and political activists throughout the year.

The Divisional Officer (DO) for Douala V, Littoral region, prohibited a meeting and rally that the opposition Social Democratic Front party intended to organize on March 4 at “Carrefour Le Pauvre” intersection, followed by a march along a specific itinerary. The DO stated the event was likely to disrupt public order. On March 4, authorities allegedly deployed police and gendarmerie antiriot cars, as well as armed gendarmes and police officers, around the planned meeting spot.

Security forces erected barricades along the planned course for the rally. In the early hours of the day, authorities also deployed troops around the DO's residence in Ndogpassi neighborhood in Douala.

In May authorities banned two events scheduled to take place in Yaounde, including press conferences by Amnesty International and NGO New Human Rights (NDH). The objective of Amnesty International's conference was to communicate the contents of letters and petitions requesting President Biya to release three students whom a military court sentenced to 10 years' imprisonment for exchanging jokes about Boko Haram by short message service. A dozen security agents in uniform and plainclothes invaded the meeting venue early in the morning and asked hotel officials to close the meeting hall. The NDH conference intended to focus on the topic "human rights and the fight against terrorism in Cameroon." The DO alleged the event was likely to disturb public order. In August the Cameroon Political Journalists Club could not hold the ninth edition of its monthly Cafe Politique, which was scheduled to host a National Democratic Institute representative. Yaounde's DO claimed the conference would disturb the public order and peace.

FREEDOM OF ASSOCIATION

The constitution and law provide for freedom of association, but the law also limits this right. On the recommendation of the senior divisional officer, the Ministry of Territorial Administration and Decentralization may suspend the activities of an association for three months on grounds the association is disrupting public order. The minister may also dissolve an association if it is deemed a threat to state security. National associations may acquire legal status by declaring themselves in writing to the ministry but the ministry must explicitly register foreign associations and religious groups; if they do not, the law imposes

heavy fines for individuals who form and operate any such association. The law prohibits organizations that advocate a goal contrary to the constitution, laws, and morality, as well as those that aim to challenge the security, territorial integrity, national unity, national integration, or republican form of the state.

The conditions for recognition of political parties, NGOs, or associations were complicated, involved long delays, and were unevenly enforced. This resulted in associations operating in legal uncertainty, their activities tolerated but not formally approved.

On January 17, the minister of territorial administration and decentralization banned the Southern Cameroons National Council and the Cameroon Anglophone Civil Society Consortium, officially prohibiting all activities, meetings, and demonstrations initiated by either group or anyone sympathetic to them. The minister stated the purpose and activities of these organizations were contrary to the constitution and could jeopardize the security of the state, territorial integrity, national unity, and integration.

C. FREEDOM OF RELIGION

See the Department of State's *International Religious Freedom Report* at www.state.gov/religiousfreedomreport/.

D. FREEDOM OF MOVEMENT

Although the constitution and law provide for freedom of internal movement, foreign travel, emigration, and repatriation, at times the government restricted these rights. The government worked closely with the Office of the UN High Commissioner for Refugees (UNHCR) and other humanitarian organizations to

provide protection and assistance to internally displaced persons (IDPs), refugees, asylum seekers, stateless persons, and other persons of concern.

In-country Movement: Police and gendarmes at roadblocks and checkpoints in cities and on most highways often extorted bribes and harassed travelers. Police frequently stopped travelers to check identification documents, vehicle registrations, and tax receipts as security and immigration control measures. Between September 29 and October 5, authorities in the two Anglophone regions closed regional land and sea borders, banned movement from one division to another, and in some cases, prevented people from leaving their homes on October 1.

INTERNALLY DISPLACED PERSONS (IDPS)

Several thousand persons abandoned their homes in some villages on the border with Nigeria and fled to cities in the Far North region because of frequent attacks by Boko Haram. The International Organization for Migration's Displacement Tracking Matrix Round 11 for the Far North region indicated a total displaced population of 335,016 individuals, including 241,987 IDPs, 29,337 unregistered refugees, and 63,692 returnees. Of the IDP population, 92 percent was reportedly displaced due to the conflict with Boko Haram; and 8 percent was displaced due to flooding and other climatic factors.

PROTECTION OF REFUGEES

Refoulement: Following security measures taken by authorities in the Far North region to counter Boko Haram, UNHCR and NGOs reported more than four thousand cases of forced returns in the year to December, mostly of Nigerians. In a press release on February 23, UNHCR expressed concern over the forced expulsion of 517 Nigerians, including 313 who had requested asylum. During a

press conference on March 23, the minister of communications refuted all allegations of forced returns. He acknowledged, however, that the government escorted refugees from several localities of Mayo Sava Division to Banki, Borno State, Nigeria. The minister said the operations were carried out in agreement with Nigerian authorities, especially the National Emergencies Management Agency and Borno's State Emergency Management Agency. UNHCR also reported that 887 Nigerian refugees, who were alleged to have been forcibly returned, arrived in Banki on June 27.

Access to Asylum: The laws provide for granting asylum or refugee status, and the government has established a system of providing protection to refugees. UNHCR continued to provide documentation and assistance to the refugee population. UNHCR and the government continued to conduct biometric verification and registration of refugees, including of those not living in refugee camps. Nevertheless, local authorities did not always recognize these documents as official, which prevented refugees from travelling and engaging in business activities. As of November 30, the country hosted 247,777 refugees from the Central African Republic (CAR) and 90,728 from Nigeria. The country hosted 652,967 persons of concern to UNHCR as of November 30.

Access to Basic Services: Most refugees had access to health care, education, and limited employment opportunities. Access to these services varied according to the location of the refugees, with those in camps receiving support through humanitarian organizations while refugees living in host communities faced difficulty receiving services.

Durable Solutions: On March 2, UNHCR and the governments of Cameroon and Nigeria signed a tripartite agreement concerning voluntary repatriation. On August 10, the tripartite commission met for the first time and directed its technical working group to set up a timetable and procedures "to ensure the safe, dignified,

voluntary return and sustainable reintegration of Nigerian refugees from Cameroon.” Between April and June, the number of Nigerian refugees returning from Cameroon to Banki, Nigeria, reached 15,036. In addition the Nigerian Immigration Service (NIS) registered 5,224 individuals who had earlier returned to Banki between January and March. In total the NIS registered 20,260 returnees between January and June, according to UNHCR. Observers and NGOs, however, continued to report as of November that the agreement had yet to be fully implemented and that Cameroon continued forcibly to repatriate Nigerian refugees to Nigeria.

Temporary Protection: The government provided temporary, unofficial protection to individuals who may not qualify as refugees, extending this protection to hundreds of individuals during the year, including third-country nationals who had fled violence in the CAR. Due to their unofficial status and inability to access services or support, however, many of these persons were subject to harassment and other abuse.

Section 3.

Freedom to Participate in the Political Process

The constitution provides citizens the ability to choose their government in free and fair periodic elections held by secret ballot and based on universal and equal suffrage.

The law provides citizens the ability to choose their government in free and fair periodic elections held by secret ballot and based on universal and equal suffrage. President Biya and the majority Cameroon Peoples Democratic

Movement (CPDM), however, controlled key elements of the political process, including the judiciary.

Elections and Political Participation

Recent Elections: In the three elections held in 2013, the CPDM was the most popular party except in the Northwest, where it faced strong competition from the Social Democratic Front. The CPDM remained dominant in state institutions, partially due to strategic redrawing of voter districts, use of government resources for CPDM campaigning, interference with the right of opposition parties to organize and publicize views during electoral campaigns, and privileges associated with belonging to the ruling party.

In September 2013 the country held simultaneous legislative and municipal elections, with 29 parties participating in the legislative elections and 35 in the municipal elections. The CPDM won 148 of 180 parliamentary seats and 305 of 360 municipal council positions, representing slight gains for opposition parties, compared with the parliament elected in 2007. In preparation for the 2013 legislative and municipal polls, Elections Cameroon (ELECAM), whose members the president appointed, compiled new voter rolls using biometric technology and issued biometric voter identification cards that were required at polling booths. Despite irregularities, such as the inconsistent use of identification cards due to a lack of expertise among local polling officials, opposition parties generally accepted the results. The high voter turnout (70 percent of registered voters) and ELECAM's administration of the election were viewed as major improvements over previous elections.

In April 2013 the country held its first Senate elections. The ruling CPDM won 54 of the 70 elected seats; the president, in accordance with the constitution,

appointed an additional 30 senators. The elections were peaceful and generally free and fair.

In 2011 President Biya was re-elected in a poll marked by irregularities, but one that most observers believed reflected popular sentiment.

Political Parties and Political Participation: The country had 300 registered political parties. Membership in the ruling political party conferred significant advantages, including in the allocation of key jobs in state-owned entities and the civil service. The president appoints all ministers, including the prime minister; the governors of each of the 10 regions, who generally represented CPDM interests; and important lower-level members of the 58 regional administrative structures. The government pays the salaries of (primarily nonelected) traditional leaders, which supports a system of patronage.

Authorities sometimes refused to grant opposition parties permission to hold rallies and meetings.

Participation of Women and Minorities: There are no laws preventing women or members of minority groups from voting, running for office, and serving as electoral monitors, or otherwise participating in political life on the same basis as men or nonminority citizens. The law provides that lists of candidates for legislative and municipal elections should take into account the sociological components of the constituency, including gender. Cultural and traditional factors, however, reduced women's political participation compared to that of men. Women remained underrepresented at all levels of government, but their political participation continued to improve. For the 2013-18 electoral period, women occupied 26 of 374 council mayor positions, in comparison with 23 in 2007-13 and 10 in 2002-07. Women occupied 10 of 62 cabinet positions, 76 of 280 parliamentary

seats, and senior government offices, including territorial command and security/defense positions.

The minority Baka people took part as candidates in municipal and legislative elections but were not represented in the Senate, National Assembly, or higher offices of government.

Section 4.

Corruption and Lack of Transparency in Government

The law provides criminal penalties for corruption by officials, although these were seldom enforced. The penal code identifies different offenses as corruption, including influence peddling, involvement in a prohibited employment, and nondeclaration of conflict of interest. Reporting of corruption is encouraged through exempting whistleblowers from criminal proceedings. Corruption in official examinations is punished with imprisonment of up to five years, fines up to two million CFA francs (\$3,731), or both. Nevertheless, corruption remained pervasive at all levels of government. The government did not always effectively address high-profile cases, and officials continued to engage in corrupt practices with impunity. The judiciary was not always free to independently investigate and prosecute corruption cases. In the context of the fight against Boko Haram, local sources indicated that corruption-related inefficiencies and diversion of resources from their intended purposes continued to represent a fundamental national security vulnerability.

Corruption: Launched in 2006 to fight corruption, including embezzlement of public funds, Operation Sparrow Hawk continued. As in the previous year, the court opened new corruption cases and issued verdicts on some pending cases. During

the year vehicle owners in Yaounde consistently complained about corrupt city officials, including police, pocketing communal taxes and parking fines. In March the Special Criminal Court (SCC) issued an arrest warrant against former minister of agriculture and rural development, Lazare Essimi Menye, who fled the country in 2015. Essimi Menye was charged with complicity in the misappropriation of more than one billion CFA francs (\$1.87 million) in public funds. On July 31, the prosecution case against Amadou Vamoulke, former director general of Cameroon Radio Television, and two others, opened at the SCC after 12 months of pretrial detention. The defendants pled not guilty during this initial hearing session. The judges then adjourned the case to August 16. The examining magistrate placed Vamoulke in pretrial detention in July 2016 for the alleged misappropriation of more than 10 billion CFA francs (\$18.7 million).

Some officers convicted of corruption were relieved of their duties but continued to be paid due to weak oversight, accountability, and enforcement mechanisms for internal disciplining. Individuals reportedly paid bribes to police and the judiciary to secure their freedom. Police demanded bribes at checkpoints, and influential citizens reportedly paid police to make arrests or abuse individuals with whom they had personal disputes. There were reports some police associated with the issuance of emigration and identification documents collected additional fees from applicants. The minister-delegate in charge of defense and the secretary of state for defense in charge of the gendarmerie were charged with investigating and sanctioning officers involved in unethical practices, including corruption.

Financial Disclosure: The constitution requires senior government officials, including members of the cabinet, to declare their assets, but a law passed to implement this provision has itself never been implemented.

Section 5.

Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Abuses of Human Rights

A number of domestic and international human rights groups investigated and published findings on human rights cases. As in previous years, government officials impeded the effectiveness of many local human rights NGOs by harassing their members, limiting access to prisoners, refusing to share information, and threatening violence against NGO personnel. Human rights defenders and activists received anonymous threats by telephone, text message, and email. The government took no action to investigate or prevent such occurrences. The government criticized reports from international human rights organizations including Amnesty International and the International Crisis Group, accusing the organizations of publishing baseless accusations, with the intention of discrediting the government and military. Despite these restrictions, numerous independent domestic human rights NGOs continued operations to the best of their ability, although many reported that government threats and intimidation limited their capability to operate in the country.

There were several reports of intimidation of, threats against, and attacks on human rights activists, including members of the Network of Human Rights Defenders in Central Africa (REDHAC), NDH, the Mandela Center, and Front Line Fighters for Citizens' Interests, among others. For example, the intimidation of Maximilienne Ngo Mbe, executive director of REDHAC, continued. The threats increased after REDHAC spoke out against the crackdown on protests that Anglophone citizens and activists carried out since November 2016, which resulted

in numerous arrests and arbitrary detentions of citizens. In an August 28 release, NGO Mandela Center alleged the NDH executive director was nearly abducted on August 22 while trying to retrieve a package sent to her by Amnesty International. She was not able to retrieve the package, and on the following day, the senior divisional officer of Mfoundi, Center region, asked the Yaounde I police district commissioner to seize the 20 copies of Amnesty International's report that were intended for NDH and to refer to the prosecutor any person who challenged the order.

Government Human Rights Bodies: The National Commission on Human Rights and Freedoms (NCHRF) is an independent, government-funded institution for consultation, monitoring, evaluation, dialogue, concerted action, promotion, and protection of human rights. The NCHRF was established by a 1990 presidential decree and subsequently given more powers by a 2004 law. NCHRF powers are limited, however. It can only make recommendations to competent authorities. The commission publishes yearly reports on the human rights environment and may engage in research, provide education, coordinate actions with NGOs, and visit prisons and detention sites. As of September 30, the NCHRF had not released its 2016 human rights report. NGOs, civil society, and the general population considered the NCHRF dedicated and effective, albeit inadequately resourced and with insufficient ability effectively to hold human rights violators to account. Its budget was far smaller than that of most other agencies with comparable status, such as the National Anti-Corruption Commission and ELECAM.

The National Assembly's Constitutional Laws, Human Rights and Freedoms, Justice, Legislation, Regulations, and Administration Committee was adequately resourced and reviewed the constitutionality of proposed legislation. It approved most ruling party legislation, however, and was not an effective check on ruling party initiatives.

Section 6.

Discrimination, Societal Abuses, and Trafficking in Persons

Women

Rape and Domestic Violence: The law criminalizes rape of men and women and provides penalties of between five and 10 years' imprisonment for convicted rapists. Police and courts, however, rarely investigated or prosecuted rape cases, especially since victims often did not report them. The law does not address spousal rape.

The law does not specifically prohibit domestic violence, although assault is prohibited and punishable by imprisonment and fines.

The DGSN, in partnership with UN Women, also carried out activities to combat rape and other forms of gender-based violence (GBV). From January 30 to March 31, the two organizations trained 250 police officers in the Far North region on the protection of rights of women and children vis-a-vis national and international legal frameworks. Following the training, four special units referred to as "gender desks" were established in four divisions where Boko Haram was active: Diamare, Mayo-Tsanaga, Mayo-Sava, and Logone and Chari. The units were intended to serve as counseling centers for victims of GBV.

Female Genital Mutilation/Cutting (FGM/C): The law protects the physical and bodily integrity of persons, and the 2016 penal code prohibits genital mutilation of all persons. Whoever mutilates the genitals of a person is subject to imprisonment from 10 to 20 years, and imprisonment for life if the offender habitually carries out this practice, does so for commercial purposes, or if the practice causes death. FMG/C remained a problem, but its prevalence remained low. As in the previous

year, children were reportedly subjected to FGM/C in isolated areas of the Far North, East, and Southwest regions and in the Choa and Ejagham tribes, although the practice continued to decrease. For more information, see

data.unicef.org/resources/female-genital-mutilation-cutting-country-profiles/.

Other Harmful Traditional Practices: Widows were sometimes forcibly married to one of the deceased husband's relatives to secure continued use of property left by the husband, including the marital home. To protect women, including widows, better, the government included provisions in the 2016 penal code addressing the eviction of one spouse from the marital home by any person other than the other spouse.

Sexual Harassment: The law prohibits sexual harassment. The penal code provides for imprisonment from six months to one year and fines from 100,000 to one million CFA francs (\$187-\$1,865) for whoever takes advantage of the authority conferred on them by their position to harass another using orders, threats, constraints, or pressure to obtain sexual favors. The penalty is imprisonment for one to three years if the victim is a minor and from three to five years if the offender is in charge of the education of the victim. Despite these legal provisions, sexual harassment was widespread.

Coercion in Population Control: There were no reports of coerced abortion, involuntary sterilization, or other coercive population control methods. Estimates on maternal mortality and contraceptive prevalence are available at:

www.who.int/reproductivehealth/publications/monitoring/maternal-mortality-2015/en/.

Discrimination: The constitution provides for the same legal status and rights for women and men; however, in law women did not enjoy the same rights and privileges as men. Although local government officials including mayors claimed

women had access to land in their constituencies, the overall sociocultural practice of denying women the right to own land, especially through inheritance, was prevalent in most regions.

Children

Birth Registration: Citizenship is derived from parents, and it is the parents' responsibility to register births. Because many children were not born in formal health facilities and many parents were unable to reach local government offices, many births were unregistered. (For data, see the UNICEF *Multiple Indicator Cluster Survey*.)

Education: The law provides for tuition-free compulsory primary education but does not set an age limit. Children were generally expected to complete primary education at age 12. Secondary school students had to pay tuition and other fees in addition to buying uniforms and books. This rendered education unaffordable for many children.

Teachers and students from the Northwest and Southwest regions boycotted classes as part of broader Anglophone protests during the year. In the Far North region, the 2016-17 academic year was largely lost for many children due to the fight against Boko Haram. Stand Up For Cameroon, a Cameroon People's Party platform for political leaders, civil society activists, and engaged citizens, stated in August that the Boko Haram conflict had made approximately 114,000 school-aged children IDPs.

Child Abuse: Boko Haram continued to abduct children and, according to reports, used 83 children, including 55 girls, as "suicide bombers" between January 1 and July 31. News reports also cited cases of child rape and the kidnapping of

children for ransom. (For additional data, see the UNICEF *Multiple Indicator Cluster Survey*.)

Security force abuse of children was also a problem. In March a gendarme in Boumba and Ngoko Division, East region, raped a 10-year-old girl after breaking into her home. The child's parents filed complaints with the gendarmerie brigade commander, the company commander, and the DO, but the officials allegedly took no immediate action. On March 27, the prosecutor at the local military court allegedly transferred the case to the gendarmerie commander in Bertoua, East region, for preliminary investigations. The suspect and a person considered to be his facilitator were arrested and detained at the Bertoua Central Prison pending the preliminary investigation. On September 19, the government commissioner at the Bertoua Military Court reportedly ordered their release, and as of November no information was publicly available on the reason for the release. Since then, the suspect reportedly threatened the victim's family with reprisal.

Early and Forced Marriage: The minimum legal age for marriage is 18. The law punishes anyone who compels another to marry with imprisonment for five to 10 years, and with fines of 25,000 CFA francs (\$47) to 1,000,000 CFA francs (\$1,865). When victims are minors, punishment may not be less than a two-year prison sentence, regardless of mitigating circumstances. The court may also take away custody from parents who give away their underage children in marriage. Despite these legal provisions, some families reportedly tried to marry their girls before age 18. (For data, see the UNICEF website.)

Sexual Exploitation of Children: The law prohibits the commercial sexual exploitation of children, as well as practices related to child pornography. A conviction, however, requires proof of the use of a threat, fraud, deception, force, or other forms of coercion. Penalties include imprisonment of 10 to 20 years and

a fine of 100,000 to 10 million CFA francs (\$187-\$18,656). The law does not specifically provide a minimum age for consensual sex. Children under age 18 were exploited in prostitution, especially by restaurant and bar promoters, although no statistics were available.

Child Soldiers: The government did not recruit or use child soldiers, but Boko Haram continued to utilize child soldiers, including girls, in their attacks on civilian and military targets. There were also limited reports that some vigilance committees in the Far North region incorporated children in their ranks to combat Boko Haram. For example, Child Soldiers International reported that vigilance committees in Amchide, Fotokol, Kolofata and Maroua used children. The NGO further stated the children were mostly between the ages of 15 and 17 and accounted for 10 percent of vigilance committee membership. UN agencies and NGOs operating in the region could not confirm these numbers.

Displaced Children: The International Organization for Migration's Displacement Tracking Matrix Round 11 estimated that 67 percent of IDPs and refugees were children. Many children lived on the streets of major urban centers, although their number apparently declined as a result of stringent security measures against Boko Haram and the amended penal code that criminalizes vagrancy.

International Child Abductions: The country is not a party to the 1980 Hague Convention on the Civil Aspects of International Child Abduction. See the Department of State's *Annual Report on International Parental Child Abduction* at travel.state.gov/content/childabduction/en/legal/compliance.html.

Anti-Semitism

The Jewish community was very small, and there were no known reports of anti-Semitic acts.

Trafficking in Persons

See the Department of State's Trafficking in Persons Report at www.state.gov/j/tip/rls/tiprpt/.

Persons with Disabilities

The law does not specifically address discrimination against persons with physical, sensory, intellectual, and mental disabilities, but the constitution explicitly forbids all forms of discrimination, providing that “everyone has equal rights and obligations.” Secondary public education is tuition free for persons with disabilities and children born of parents with disabilities, and initial vocational training, medical treatment, and employment must be provided “when possible,” and public assistance “when needed.”

The majority of children with disabilities attended schools. The curriculum of the Government Teacher Training College in Buea, Southwest region, was modified to include training in inclusive education skills for teaching the deaf, blind, and developmentally disabled, among others. The government aimed to introduce inclusive education nationwide.

National/Racial/Ethnic Minorities

The population consists of an estimated 286 ethnic groups. Members of the president's Beti/Bulu ethnic group from the South region held key positions and were disproportionately represented in the government, state-owned businesses, security forces, and CPDM.

Indigenous People

An estimated 50,000 to 100,000 Baka, including Bakola and Bagyeli, resided primarily in (and were the earliest known inhabitants of) the forested areas of the South and East regions. The government did not effectively protect the civil or political rights of either group. Other groups often treated the Baka as inferior and sometimes subjected them to unfair and exploitative labor practices. There were credible reports the Mbororos, itinerant pastoralists living mostly in the North, East, Adamawa, and Northwest regions, were subject to harassment, sometimes with the complicity of administrative or judicial authorities.

The government continued long-standing efforts to provide birth certificates and national identity cards to Baka. Most Baka did not have these documents, and efforts to reach them were impeded by the difficulty in accessing their homes deep in the forest.

Acts of Violence, Discrimination, and Other Abuses Based on Sexual Orientation and Gender Identity

Consensual same-sex sexual activity is illegal and punishable by a prison sentence of six months to five years and a fine ranging from 20,000 to 200,000 CFA francs (\$37-\$373).

Lesbian, gay, bisexual, transgender, and intersex (LGBTI) rights organizations such as the Cameroonian Foundation for AIDS (CAMFAIDS), Humanity First Cameroon, Alternatives Cameroun, National Observatory of the Rights of LGBTI Persons and Their Defenders, and others reported several arrests of LGBTI persons. LGBTI individuals received anonymous threats by telephone, text message, and email, including of “corrective” rape, but authorities did not investigate allegations of harassment. Police were generally unresponsive to requests to increase protection for lawyers who received threats because they represented LGBTI persons. Both police and civilians reportedly continued to extort money from presumed LGBTI individuals by threatening to expose them.

Humanity First Cameroon and Alternatives Cameroun claimed in their joint 2017 annual report that eight LGBTI persons remained imprisoned for homosexuality in the Kondengui central prison in Yaounde. The two NGOs also documented 578 other cases of human rights abuses related to homosexuality, including 27 arbitrary arrests.

On August 11, police summoned CAMFAIDS’ leadership to the DGSN for “promotion of homosexual practices.” On August 16, police interrogated four members of CAMFAIDS. While some questions concerned the legal status of the advocacy group and its funding sources, police also requested a list of its members and a list of similar organizations.

Some LGBTI persons had difficulty accessing birth registration and other identification documents. Officials at identification units refused to issue identification cards for persons whose physical characteristics were not consistent with their birth certificate.

In 2016 Johns Hopkins University, Metabiota Cameroon, and Care USA, in collaboration with the National AIDS Coordinating Council, conducted an Integrated

Biological and Behavioral Survey on gay men, using a sample of 1,323 men. The preliminary report released in March showed inter alia that 14.7 percent were arrested for being homosexual. (For more information, see jhu.pure.elsevier.com).

Human rights and health organizations continued to advocate for the LGBTI community by defending LGBTI individuals under prosecution, promoting HIV/AIDS initiatives, and working to change laws prohibiting consensual same-sex activity. Organizations undertaking these activities faced obstacles securing official registration, as well as, limited or non-existent responses from police when they experienced harassment.

HIV and AIDS Social Stigma

Persons afflicted with HIV or AIDS often suffered social discrimination and were isolated from their families and society due to social stigma and lack of education about the disease.

Unlike previous years, there were no credible reports of specific cases of discrimination in employment.

Other Societal Violence or Discrimination

Several cases of vigilante action and other attacks were reported during the year.

Several arson attacks were also recorded, involving the destruction of both public and private property. On March 30, unidentified individuals set fire to the Old Market in Limbe, Southwest region. The fire lasted about four hours and destroyed at least fifty shops.

The law provides for sentences of between two and 10 years' imprisonment and fines of between 5,000 and 100,000 CFA francs (\$9-\$187) for witchcraft. There were no reported arrests or trials for alleged witchcraft reported during the year.

Section 7.

Worker Rights

A. FREEDOM OF ASSOCIATION AND THE RIGHT TO COLLECTIVE BARGAINING

The law provides for the rights of workers to form and join independent unions, bargain collectively, and conduct legal strikes. The law also prohibits antiunion discrimination and requires reinstatement of workers fired for union activity. Statutory limitations and other practices substantially restricted these rights. The law does not permit the creation of a union that includes both public- and private-sector workers or the creation of a union that includes different, even if closely related, sectors. The law requires that unions register with the government, permitting groups of no fewer than 20 workers to organize a union by submitting a constitution and by-laws; founding members must also have clean police records. The law provides for heavy fines for workers who form a union and carry out union activities without registration. Trade unions or associations of public servants may not join a foreign occupational or labor organization without prior authorization from the minister responsible for “supervising public freedoms.”

The constitution and law provide for collective bargaining between workers and management as well as between labor federations and business associations in each sector of the economy. The law does not apply to the agricultural or informal sectors, which included the majority of the workforce.

Legal strikes or lockouts may be called only after conciliation and arbitration procedures have been exhausted. Workers who ignore procedures to conduct a legal strike may be dismissed or fined. Before striking, workers must seek mediation from the Ministry of Labor and Social Security at the local, regional, and ministerial levels. Only if mediation fails at all three levels can workers formally issue a strike notice and subsequently strike. The provision of law allowing persons to strike does not apply to civil servants, employees of the penitentiary system, or workers responsible for national security, including police, gendarmerie, and army personnel. Instead of strikes, civil servants are required to negotiate grievances directly with the minister of the appropriate department in addition to the minister of labor and social security. Arbitration decisions are legally binding but were often unenforceable if one party refused to cooperate.

Employers guilty of antiunion discrimination are subject to fines of up to approximately one million CFA francs (\$1,866).

Free Industrial Zones are subject to labor law, except for the following provisions: the employers' right to determine salaries according to productivity, the free negotiation of work contracts, and the automatic issuance of work permits for foreign workers.

In practice, the government and employers did not effectively enforce the applicable legislation on freedom of association and the right to collective bargaining. Penalties for violations were rarely enforced and useless as a deterrent. Administrative judicial procedures were infrequent and subject to lengthy delays and appeals. The government and employers often interfered in the functioning of workers' organizations. The government occasionally worked with nonrepresentative union leaders to the detriment of elected leaders, while employers frequently used hiring practices such as subcontracting to avoid hiring workers with bargaining rights. Blacklisting of union members, unfair dismissal,

promotion of employer-controlled unions, and threatening workers trying to unionize were common practices.

New trade unions did not have easy access to registration. In a letter dated July 30, officials of the newly formed Private Security Workers Union in Wouri Division, Littoral region, informed the Registrar of Trade Unions of the creation of their organization in April 2016 and at the same time requested its affiliation with the Confederation of Workers' Unions of Cameroon (CSTC). The registrar requested additional time to authenticate the documents provided.

More than 100 trade unions and 12 trade union confederations operated, including one public-sector confederation.

The government undermined the leadership of the CSTC elected in 2015 by continuing to cooperate with former leaders of the CSTC. Jean Marie Zambo Amougou, the former leader, continued to use the title of "President of the CSTC," despite a January 17 court decision ordering him to stop doing so with immediate effect. The Minister of Labor and Social Security continued to consider Zambo Amougou as the official representative of the CSTC, inviting him to meetings and sending all CSTC correspondence to him, to the detriment of CSTC's legitimate leader, Andre Moussi Nolla, and other new leaders, despite multiple complaints by the CSTC. The minister also appointed Zambo Amougou, Tsoungui Fideline Christelle, Beyala Jule Dalamard, Nintcheu Walla Charles, Malloum Lamine, and Hamadou Nassourou, all members of the former CSTC management team, to be workers' representatives in the country's delegation at the 106th International Labor Conference in Geneva June 5-16. In a May 31 letter to the International Labor Organization's Credentials Committee, the new leaders of the CSTC unsuccessfully attempted to oppose the inclusion of these delegates.

As in 2016, trade unionists reported on officials prohibiting the establishment of trade unions in their private businesses, including Fokou, Afrique Construction, Eco-Marche, and Quifferou, or otherwise hindering union operations. Some companies based in Douala II, IV, and V and in Tiko (Southwest region), for example, retained 1 percent of unionized workers' salaries but refused to transfer the money to trade unions. Some companies that were initially against unionization of their workers changed their minds and allowed their employees to join trade unions, such as DANGOTE Ciment Cameroon, which allowed elections of workers' representatives.

Many employers frequently used hiring practices such as subcontracting to avoid hiring workers with bargaining rights. Workers' representatives stated that most major companies, including parastatal companies, engaged in the practice, citing ENEO, CDE, Cimencam, Guinness, Alucam, and many others. Subcontracting was reported to involve all categories of personnel, from the lowest to senior levels. As a result, workers with equal expertise and experience did not always enjoy similar advantages when working for the same business; subcontracted personnel typically lacked a legal basis to file complaints.

A number of strikes were announced, some of which were called off after successful negotiation. Others, however, were carried out without problems, or with some degree of repression. Workers' grievances generally involved poor working conditions, including lack of personal protective equipment, improper implementation of collective agreements, nonpayment of salary arrears or retirement benefits, illegal termination of contracts, lack of salary increases, and failure of employers to properly register employees and pay the employer's contribution to the National Social Insurance Fund, which provides health and social security benefits.

The government suspended the salaries of 11 workers' representatives affiliated with the Wouri divisional union of council workers following a strike on April 10. Employees of the city council in Douala demanded health insurance for themselves and their immediate relatives. The government-delegate fired the complainants, but was overruled by the Minister of Labor and Social Security. The government-delegate, however, had not reinstated the employees as of December.

Medical doctors staged a series of strikes for better working conditions and higher pay in April and May, after unsuccessful negotiations with health minister Andre Mama Fouda in January had failed to yield positive outcomes. Minister Fouda cautioned the doctors against striking, which he described as illegal, stating that the doctors union was not registered. In an attempt to neutralize the movement after the April strike, he transferred union leaders to health facilities in remote rural areas in the northern part of the country. In none of the transfers did the technical level of the health facility match the profile of the doctors.

Teachers and lawyers in the Anglophone regions also went on a strike that lasted for many months to protest what they referred to as their marginalization by the French-speaking majority. After initially restricting the lawyers significantly, the government subsequently implemented a series of measures aimed at diffusing tension. Lawyers and teachers resumed work in the two regions by November.

B. PROHIBITION OF FORCED OR COMPULSORY LABOR

The constitution and law prohibit all forms of forced and compulsory labor. The law prohibits slavery, exploitation, and debt bondage and voids any agreement in which violence was used to obtain consent. Violations of the law are punishable by prison terms of five to 20 years and fines ranging from 10,000 to 10 million francs (\$18-\$17,668). In cases of debt bondage, penalties are doubled if the offender is also the guardian or custodian of the victim. The law also extends

culpability for all crimes to accomplices and corporate entities. Although the statutory penalties are fairly severe, the government did not enforce the law effectively, due to lack of knowledge of trafficking and limited labor inspection and remediation resources. In addition, due to the length and expense of criminal trials and the lack of protection available to victims participating in investigations, many victims of forced or compulsory labor resorted to amicable settlement.

There continued to be reports of hereditary servitude imposed on former slaves in some chiefdoms in the North region. Many Kirdi, whose tribe had been enslaved by Fulani in the 1800s, continued to work for traditional Fulani rulers for compensation, while their children were free to pursue schooling and work of their choosing. Kirdi were also required to pay local chiefdom taxes to Fulani, as were all other subjects. The combination of low wages and high taxes, although legal, effectively constituted forced labor. While technically free to leave, many Kirdi remained in the hierarchical and authoritarian system because of a lack of viable options.

In the South and East regions, some Baka, including children, continued to be subjected to unfair labor practices by Bantu farmers, who hired the Baka at exploitive wages to work on their farms during the harvest seasons.

Also see the Department of State's *Trafficking in Persons Report* at www.state.gov/j/tip/rls/tiprpt/.

C. PROHIBITION OF CHILD LABOR AND MINIMUM AGE FOR EMPLOYMENT

The law generally protects children from exploitation in the workplace and specifies penalties ranging from fines to imprisonment. The law sets a minimum age of 14 for child employment, prohibits children from working at night or longer than eight hours per day, and enumerates tasks children under 18 cannot legally

perform, including moving heavy objects, undertaking dangerous and unhealthy tasks, working in confined areas, and prostitution. Employers were required to train children between ages 14 and 18, and work contracts must contain a training provision for minors. The Ministry of Social Affairs and the Ministry of Labor and Social Security were responsible for enforcing child labor laws through site inspections of registered businesses. Although the government did not allocate sufficient resources to support an effective inspection program, workers' organizations reported child labor was not a major problem in the formal sector.

The use of child labor, including forced labor, in informal sectors remained rampant. According to an International Labor Organization 2012 survey, 40 percent of children between the ages of six and 14 were engaged in economic activity; 89 percent of working children were employed in agriculture, 5 percent in commerce, and 6 percent in either industrial work or domestic service. UNICEF's 2014 *Multiple Indicator Cluster Survey* indicated that 47 percent of children ages five-14 engaged in child labor. Children working in agriculture frequently were involved in clearing and tilling the soil and harvesting crops, such as bananas and cocoa. In the service sector, children worked as domestic servants and street vendors. Children worked at artisanal mining sites under dangerous conditions. Children were also forced to beg by adults, often by their parents to provide additional income for the household. According to anecdotal reports, child labor, especially by refugee children, was prevalent in the building construction sector. Chinese firms also reportedly resorted to child labor in the manufacture of children's shoes.

Parents viewed child labor as both a tradition and a rite of passage. Relatives often brought rural youth, especially girls, to urban areas to exploit them as domestic helpers under the pretense of allowing them to attend school. In rural areas many children began work at an early age on family farms. The cocoa

industry and cattle-rearing sector also employed child laborers. These children originated, for the most part, from the three northern and the Northwest regions.

The Ministry of Social Affairs implemented activities to sensitize parents to the negative impact of child labor. For example, during the vacation period in June, the ministry, in collaboration with the second police district in Yaounde, conducted a two-week campaign to identify children from ages seven to 17 selling items on the streets of Mokolo. Police took the children to the district police station, where they registered and held the children until they could notify the parents. Police interrogated the parents, informed them of the risks to which their children were exposed, and warned them they would be prosecuted if the children returned to the streets.

Also see the Department of Labor's *Findings on the Worst Forms of Child Labor* at www.dol.gov/ilab/reports/child-labor/findings/.

D. DISCRIMINATION WITH RESPECT TO EMPLOYMENT AND OCCUPATION

The law contains no specific provisions against discrimination.

Discrimination in employment and occupation allegedly occurred with respect to ethnicity, HIV status, disability, gender, and sexual orientation, especially in the private sector. Ethnic groups often gave preferential treatment to fellow ethnic group members in business and social practices, and persons with disabilities reportedly found it difficult to secure employment. There were no reliable reports of discrimination against internal migrant or foreign migrant workers, although anecdotal reports suggested such workers were vulnerable to unfair working conditions. During the year, however, no reliable reports highlighted any concrete case of discrimination with respect to employment. The government did not report

publicly or privately on its efforts to prevent or eliminate employment discrimination.

E. ACCEPTABLE CONDITIONS OF WORK

The minimum wage in all sectors is 36,270 CFA francs (\$68) per month. Premium pay for overtime ranges from 120 to 150 percent of the hourly rate, depending on the amount of overtime and whether it is weekend or late-night overtime. Despite the minimum wage law, employers often negotiated with workers for lower salaries, in part due to the high rate of unemployment in the country. Salaries lower than the minimum wage remained prevalent in the public works sector, where many positions required unskilled labor, as well as in the domestic work sector, where female refugees were allegedly vulnerable to unfair labor practices.

The law establishes a standard workweek of 40 hours in public and private nonagricultural firms and a total of 2,400 hours per year, with a maximum limit of 48 hours per week in agricultural and related activities. There are exceptions for guards and firefighters (56 hours a week), service-sector staff (45 hours), and household and restaurant staff (54 hours). The law mandates at least 24 consecutive hours of weekly rest.

The law mandates paid leave at the employer's expense at the rate of one and one-half working days for each month of actual service. For persons under age 18, leave accrues at the rate of two and one-half days per month of service. A maximum of 10 days per year of paid special leave, not deductible from annual leave, is granted to workers on the occasion of immediate family events. For mothers the leave is increased by either two working days for each child under age six on the date of departure on leave, where the child is officially registered and lives in the household, or one day only if the mother's accrued leave does not exceed six days. The leave is increased depending on the worker's length of

service with the employer by two working days for each full period whether continuous or not of five years of service. For mothers, this increase is in addition to the one described above.

The government sets health and safety standards in the workplace. The minister in charge of labor establishes the list of occupational diseases in consultation with the National Commission on Industrial Hygiene and Safety. These regulations were not enforced in the informal sector. The labor code also mandates that every enterprise and establishment of any kind provide medical and health services for its employees. This stipulation was not enforced. By law workers may remove themselves from situations that endanger health or safety without jeopardy to their employment, but authorities did not effectively protect employees in these situations.

The Ministry of Labor and Social Security is responsible for national enforcement of the minimum wage and work-hour standards. Ministry inspectors and occupational health physicians are responsible for monitoring health and safety standards, but the ministry lacked the resources for a comprehensive inspection program. Although there were ministries tasked with upholding the labor laws, resources were inadequate to support their mission. For example, the city of Douala, which has six subdivisions, hundreds of companies, and thousands of employees, had only one labor inspectorate, which was generally poorly staffed. Meme Division of the Southwest region had only one labor delegate and no labor inspectors. This labor delegate did not have any means or transportation to travel throughout the division. The office had not had computers since 2016 due to a burglary, so the delegate often visited the communal technology center or other government offices to type and print official correspondence and notices.